

CONSULTING AGREEMENT

This Agreement is entered into as of Jan 12, 2023 (the "Effective Date") by and between Meridian Dynamics, with its principal place of business in Minneapolis, MN ("Client"), and Vanguard Systems, with its principal place of business in Minneapolis, MN ("Provider"). The parties agree as follows:

SECTION A. CONFIDENTIALITY

Each party agrees to hold in strict confidence all non-public information disclosed by the other party in connection with this Agreement, and to use such information solely to perform its obligations hereunder. This obligation survives termination of this Agreement for a period of 36 months.

SECTION B. INTELLECTUAL PROPERTY

All work product created by Vanguard Systems specifically for Meridian Dynamics under this Agreement shall be the sole property of Meridian Dynamics upon full payment of the applicable fees. Vanguard Systems retains ownership of its pre-existing materials, tools, and methodologies.

SECTION C. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the State of Texas, without regard to its conflict of laws principles. The parties consent to the exclusive jurisdiction of the state and federal courts located in Texas.

SECTION D. TERMINATION

Either party may terminate this Agreement upon 30 days' written notice to the other party. Either party may terminate immediately upon a material breach by the other party that remains uncured 30 days after written notice of the breach.

SECTION E. COMPENSATION

In consideration of the Services, Meridian Dynamics shall pay Vanguard Systems fees not to exceed \$19,000 per invoice period. All invoices are payable within 30 days of receipt. Amounts unpaid after the due date accrue interest at the lesser of 1.5% per month or the maximum rate permitted by law.

SECTION F. LIMITATION OF LIABILITY

Except for breaches of confidentiality, neither party shall be liable for any indirect, incidental, special, or consequential damages arising out of this Agreement. Each party's aggregate liability shall not exceed the total fees paid or payable by Meridian Dynamics in the twelve months preceding the claim.

SECTION G. TERM AND RENEWAL

This Agreement shall commence on the Effective Date and continue for an initial term of 36 months, unless earlier terminated as provided herein. The Agreement will renew automatically for successive terms of equal length unless either party gives written notice of non-renewal at least 30 days before the end of the then-current term.

SECTION H. INDEPENDENT CONTRACTOR

Vanguard Systems is an independent contractor and nothing in this Agreement creates a partnership, joint venture, agency, or employment relationship between the parties. Vanguard Systems is solely responsible for its own taxes, insurance, and employee obligations.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

Amara Khan, Meridian Dynamics

